IMPARTIAL ANALYSIS OF MEASURE [TBD]

Article XI, Section 3 of the California Constitution, Government Code Sections 23720 and 23722, and Article I, Section 102, of the San Mateo County Charter ("Charter") authorize the Board of Supervisors ("Board") to propose amendments to the Charter for approval by the County's voters at a special election. [41]

Approval of Measure [TBD] ("Measure") would amend Section 415 of Article IV of the Charter to extend, from 30 days to 60 days, the period in which the Board must either make an appointment or call a special election to fill a vacancy in an elective office other than the Board, and to require a public meeting before any appointment is made. This Measure was placed on the ballot by ordinance and resolution passed by a majority vote of the Board. [80]

Section 415 currently requires the Board, within 30 days of a vacancy occurring in an elective office other than a Member of the Board, to either make an appointment or order a special election to fill the vacancy. If the Board does not act within 30 days, the county officer responsible for conducting elections must immediately order a special election. Section 415 does not currently require a public meeting before the Board makes an appointment. [75]

This Measure would extend the time period within which the Board must either make an appointment or order a special election to fill a vacancy from 30 days to 60 days. It would also require that, before making an appointment, the Board hold at least one noticed public meeting to receive public comment regarding the appointment and the qualifications of potential candidates. If the Board does not make an appointment or call a special election within 60 days, the county officer responsible for conducting elections would still be required to immediately order a special election, as under current law. [99]

The Measure would not change or otherwise affect the other provisions of Section 415 of the Charter, including the timing and conduct of any special election called to fill a vacancy, and the procedures governing an elected officer's resignation. [39]

Voters may call the County's Registration and Elections Division at (650) 312-5222 to request that a copy of the proposed Charter amendment be mailed to them at no cost. [25]

Measure requires approval by a majority of the qualified voters voting in the election. [15]

---------- End of Analysis ----------

(500 word limit. 374 words)